



File No.: EXP202403450

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on February 9, 2024, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On February 9, 2024, a complaint was received by this Agency filed by Mr. A.A.A. (hereinafter, the complainant) against INGENIERÍA Y CONSTRUCCIONES DEL SUR, S.A. (hereinafter, the respondent) for not having duly addressed his rights of access and deletion.

The complainant, a former employee of the respondent, indicates that, by means of an email sent on December 21, 2023, he exercised his rights of access and deletion of his personal data, which were included by the respondent on the LinkedIn portal, as well as in the news section of the respondent's website.

The complainant states that his personal data was exposed when the respondent published an excerpt of a judicial resolution involving both parties.

The complainant notes that on January 12, 2024, he received an email from the respondent indicating that "In response to your letter, we inform you that since the opening of the oral trial, the proceedings are public and it is a true news item of interest to our company and to the sector," without addressing the acceptance or rejection of the right of access and the right of deletion.

Along with the complaint, the following documents have been submitted to this Agency:

- a copy of the email sent by the complainant to the respondent requesting access and deletion of his personal data, dated December 21, 2023;
- a copy of the letter from the complainant requesting access and deletion of his personal data, dated December 21, 2023;
- a copy of the response email from the respondent, dated February 12, 2024;
- a copy of the complainant's ID;
- 2 links to the publications on LinkedIn and the respondent's website.

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

There is no record in this Agency that the respondent has submitted any response.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the complainant's claims were satisfied. Consequently, on May 9, 2024, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, so that within ten working days it could present the arguments it deemed appropriate.

The respondent, on July 19, 2024, submitted to this Agency indicating that it did not respond to the transfer of the complaint because such transfer "(...) was not identified by INGESUR due to a technical failure in the notification system."

The respondent states that "(...) on December 21, 2023, the Complainant sent INGESUR a communication requesting the exercise of the rights of access and deletion of his data.

The Complainant's request was received at the email address of INGESUR rgpd@ingesur.es. We provide as Document No. 1 the received letter.

Notwithstanding the above, since the Complainant's data was already blocked at that time, that is, not available for processing by the general staff of INGESUR, there was a delay in the attention and response by INGESUR to the Complainant's requests.

In any case, INGESUR proceeded to respond to the Complainant's request, addressing both the right of access and his request to exercise the right of deletion.

Document No. 2 is attached, which is the response sent by INGESUR to the Complainant. In order to comply with his request for the exercise of the right of access, INGESUR provided the Complainant with information regarding the processing that this party carried out, by virtue of the employment relationship maintained, of the Complainant's personal data. In the same way, INGESUR included a copy of the Complainant's data.

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Regarding the exercise of the right to erasure, INGESUR informed the Claimant of the impossibility of erasing all of their data at this time, as this could harm their interests, those of third parties, or those of INGESUR.

However, in accordance with the applicable limitation periods, the Claimant was informed that their data is currently blocked and that, upon the expiration of the limitation periods, complete erasure will proceed. (...)

The Respondent has provided a copy of the document sent to the Claimant in response to their right of access, which is undated, in which they indicate that their data is blocked.

In this document, they inform the Claimant that, using the password provided, they can access their data "(...) which is currently recorded about you in our databases as blocked."

Furthermore, in this response, they inform the Claimant that, since the Claimant was an employee of the Respondent, their data was collected for the proper development of the employment relationship, and they indicate:

"The categories of data that have been processed for this purpose are as follows:

- Identifying data: name and surname, marital status, date and place of birth, age, sex, ID number or other document that allows for the verification of identity.
- Contact data: postal address, phone number, email.
- Economic, financial, and insurance data: account number, banking data, deductions, social security number.
- Professional data: education, qualifications, CV and professional experience, non-economic payroll data, employment history.
- Personal characteristics data: family data, physical characteristics."

They also inform the Claimant of the purposes of the processing, the recipients or categories of recipients to whom their personal data has been communicated, the retention period of their personal data, the absence of automated decisions, and that the data has been obtained directly from the data subject.

"Secondly, in regard to the exercise of your right to erasure of your personal data before INGESUR, in accordance with Article 17 of the GDPR, relating to the exercise of the right to erasure, and in compliance with Article 32 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, "LOPDGDD"), it is important to clarify that the total erasure of the data as of this date could cause harm to the legitimate interests of INGESUR, yourself, or third parties.

Therefore, your minimum necessary personal data has been blocked and will be kept solely available to Public Administrations, Judges, and Courts, for the attention of possible responsibilities arising from the processing, during the limitation period for these.

In this way, and from the moment of blocking, INGESUR will not process your data in any way during this period, except for legal requirements.

Upon the expiration of this period, the definitive erasure of all data will proceed.

Notwithstanding the above, and in particular, regarding your request about the profile of INGESUR on the social network LinkedIn and the INGESUR website, as well as your identifying data published on them, we confirm that such data has been deleted, so that it is not published or accessible by third parties on such platforms. (...)"

FOURTH: After examining the document submitted by the Respondent, it is forwarded to the Claimant,

so that, within ten working days, they may make any allegations they deem appropriate.

The Claimant stated, in summary, that after their email sent to the Respondent requesting their rights of access and erasure, they received a response from them dated January 12, 2024, "In response to your letter, we inform you that since the opening of the oral trial, the proceedings are public and it is a true news item of interest to our company and to the sector," thus confirming that the Respondent "(...) responded to the right of erasure exercised by me, dismissing it and, therefore, maintaining both on their website and on the social network LinkedIn the information that I intended to be erased. However, they omitted any response or reference to the right of access also requested. (...)"

"After filing the complaint with the AEPD, INGESUR replied to me on May 9, 2024. (...)"

The Claimant points out that the Respondent "(...) both in the first and in the second response, refers to the interest of INGESUR or third parties for not attending to the request for total erasure of my data, even emphasizing in the first response the 'truthfulness of it.'

Well, as indicated in Opinion 06/2014 on the concept of legitimate interest, among others, such interest cannot prevail over the rights of the data subjects, and a balancing test or weighting report must be carried out that legitimizes such processing under that legal basis. To this end, this party is unaware whether INGESUR conducted such a test, although the fact that they subsequently proceeded to erase it indicates that it was never subject to analysis (...)"

"Furthermore, regarding the truthfulness alleged in the first response and reiterated in the allegations, even indicating the procedure, this party considers that the published information did not possess such truthfulness. Without going into detail about the criminal process, the request for filing by the prosecutor in charge of the procedure is omitted in those publications, with the information being biased to the convenience of INGESUR."

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Regarding the processing of image data by the respondent, the complainant states that "From the second response, dated May 9, 2024, from INGESUR, it follows that the processing that this entity carries out on the image data of its employees may not comply with the regulations on data protection. Specifically, section d) acknowledges the processing of these data, based on a legitimate interest, for taking photographs for subsequent publication on social media (LinkedIn) and the INGESUR website, in order to promote the activities and the execution process of the work carried out by this entity. (...) In any case, without prejudice to the fact that such processing is carried out without a valid legal basis as the employees have not given their consent, INGESUR should have conducted the necessary balancing test that authorizes such processing based on a supposed legitimate interest. To this end, this Agency should first verify that it has been carrying out the necessary actions to comply with the current regulations on data protection proactively. (...)"

FIFTH: After granting a hearing to the respondent, it reiterates its previous allegations.

The respondent adds that "Although this party initially chose not to address the context underlying the complaint filed by the Complainant before the AEPD (given that it exceeds the scope of action of said Control Authority), at this point, we believe it is appropriate to mention it, in order to highlight the intent that drives the actions of the Complainant and that, as can be seen from their statements, seeks to generate harm – including economic harm – to this entity.

All this despite the fact that the request for the exercise of rights made by the Complainant has already been satisfactorily addressed, as the Complainant himself acknowledges in the Response.

Firstly, it should be noted that the Complainant is a former employee of INGESUR, having held an employment relationship with this company for 20 years, which began on (...) and ended on (...).

"(...) The context referred to by this party, which justifies the will and interest of the Complainant in identifying a lack of diligence on the part of this party, is none other than a criminal proceeding, which is currently ongoing, with the Complainant holding the role of investigated or accused. (...)"

"(...) Firstly, this party finds it necessary to mention again that, as alleged in the allegations regarding the transfer of the Complaint, INGESUR attended to both the right of access and the request for the

exercise of the right to erasure correctly.

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Notwithstanding the above, it is true, as this party acknowledged in its previous allegations and as the Complainant points out, that there was a delay in addressing the requests for the exercise of rights from the Complainant.

As previously noted, at the time the request for the exercise of rights was made, the Complainant no longer had an employment relationship with INGESUR, nor did they maintain any contractual relationship, which is why the Complainant's data was already blocked, that is, not available for processing by the general staff of INGESUR. This caused a delay in INGESUR's response to the Complainant's request. (...)"

(...) As the regulation itself establishes and the AEPD has pointed out, once blocked, the data cannot be processed, except for making them available to Judges and Courts and the exercise of legal responsibilities (Article 32 of the LOPDGDD):

(...) This legal exception is precisely the situation we are dealing with, which justifies the processing of the Complainant's data by INGESUR: the provision of data to judges and courts due to the appearance of this company in the criminal proceeding held in the ***COURT.1, which has already been previously mentioned.

Similarly, due to the request for the exercise of the right of access by the Complainant, and the complaint before the Agency, issuing a requirement for this Control Authority to respond to this matter, INGESUR is legitimized to process the Complainant's data to address such requests and legal responsibilities, as precisely stated in Article 32 of the LOPDGDD."

LEGAL GROUNDS

I

Competence

According to the powers granted to each control authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it.

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in its Article 57, among them, the obligation to enforce the Regulation and promote awareness among the controllers and processors regarding the obligations that pertain to them, as well as to address the complaints submitted by an interested party and investigate, in a timely manner, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation for controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the

function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission for processing of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to the present procedure, the complaint was forwarded to the respondent party for analysis, to respond to this Agency within one month, and to provide proof of having given the due response to the complainant.

The result of this forwarding did not allow for the understanding that the claims of the complainant were satisfied. Consequently, on May 9, 2024, for the purposes provided in its Article 64.1 and 65 of the LOPDGDD, the complaint submitted was admitted for processing. This admission for processing determines the opening of the present procedure for failure to address a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

“When the procedure refers exclusively to the failure to address a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the agreement of admission for processing was notified to the complainant. After this period, the interested party may consider their complaint to be upheld.”

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including “ordering the controller or processor to address the requests for the exercise of the rights of the interested party under this Regulation.”

III

Rights of individuals regarding personal data protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. The rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability are contemplated.

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The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to what is expressed in Recitals 59 and following of the GDPR.

In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which will be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must express its reasons in case it does not intend to comply with such request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the data controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, “the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them are being processed and, if so, the right of access to the personal data.”

Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the data controller may

request the affected party to specify the "data or processing activities to which the request refers." The right will be considered granted if the data controller provides remote access to the data, and the request will be deemed fulfilled (although the data subject may request information regarding the aspects provided for in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that are being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the

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control authority, the information available about the origin of the data (if it has not been obtained directly from the data subject), the existence of automated decisions, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data subject to processing shall not adversely affect the rights and freedoms of others.

V

Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase the personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based according to Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply where the processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;

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d) for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right indicated in paragraph 1 could make it impossible or seriously hinder the achievement of the objectives of such processing, or

e) for the formulation, exercise, or defense of claims."

VI

Conclusion

The rights procedure is initiated as a consequence of the lack of attention to any of the rights regulated in the data protection regulations. Therefore, in this case, only the facts related to the exercise of these rights will be analyzed and assessed, excluding the other issues raised by the parties.

In this case, taking into account what is stated in the first paragraph of this legal basis, it has been established that the claiming party exercised the rights of access and deletion of their personal data by submitting a request via email sent to the responding party on December 29, 2023. Regarding the attention to these requests by the responding party, the following is observed:

- Regarding the right of access, the responding party did not properly address the request submitted by the claiming party. However, during the processing of this procedure, the responding party has stated that the personal data of the claiming party is blocked, and has sent a letter to the claiming party indicating that they can access their personal data using a username and password provided to them. Furthermore, in this letter, they inform them of the purposes of the processing, the recipients or categories of recipients to whom their personal data has been communicated, the retention period of their personal data, the non-existence of automated decisions, and that the data has been obtained directly from the data subject.

It should be noted that when exercising the right of access, it cannot be accepted that if the requested personal data is blocked, the right of access exercised is left unanswered. In this regard, it is important to indicate that blocked personal data prevents its processing, except for making it available to the competent authorities. However, this blocking does not imply that such personal data, which the data controller had and processed while the contractual relationship lasted, cannot be provided to the affected party, in case, as happens in this case, responsibilities may arise from its processing.

According to the personal data protection regulations, the deletion of data, as established in Article 32 of the LOPDGDD, must be carried out through blocking. Therefore, the deletion of personal data, once it is no longer necessary for the purpose that justified its processing, will not automatically imply its physical deletion. This

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The action is subject to certain conditions aimed at ensuring and guaranteeing the affected party's right to the protection of their personal data.

The blocked data will be available to the Courts, the Public Prosecutor's Office, or other competent public administrations, particularly the authorities for the protection of personal data, for the requirements of possible liabilities arising from the processing and for the statute of limitations of these.

For all the above reasons, since the claimant has exercised their right of access regarding the personal data concerning them, the respondent should have complied with this right of access from the first request without negatively affecting the rights and freedoms of other individuals, all in accordance

with the terms provided in the GDPR.

Consequently, although the right of access exercised by the claimant was not initially addressed, it was indeed addressed once the legally established period for doing so had elapsed, which is why it is appropriate to formally uphold the claim regarding the right of access to personal data.

- Regarding the right to erasure, once the claimant's request for erasure was received, the respondent replied indicating that "(...) since the opening of the oral trial, the proceedings are public and it is truthful news of interest to our company and to the sector." That is to say, it only responded regarding the erasure of the data that was published on the social network LinkedIn and on its website, which the claimant expressly requested, but did not respond to the request for erasure of the data that had been processed by the respondent and that was also indicated in their writing.

However, in the response sent to the claimant during the processing of the present procedure, it is stated that "(...) the total erasure of the data as of this date could cause harm to the legitimate interests of INGESUR, yourself, or third parties.

Therefore, your minimum necessary personal data has been blocked and will be kept solely at the disposal of Public Administrations, Judges, and Courts, for the attention of possible liabilities arising from the processing, during the statute of limitations for these.

In this way, and from the moment of blocking, INGESUR will not process your data in any way during this period, except for legal requirements.

Once this period has elapsed, the definitive erasure of all data will proceed."

Similarly, regarding the specific request for the erasure of the published data, it indicated that: "Without prejudice to the above, and in particular, addressing your request regarding the INGESUR profile on the social network LinkedIn and the INGESUR website, as well as your identifying data published on the same, I confirm that such data has been erased, so that they are no longer published or accessible to third parties on such platforms. (...)"

Consequently, since this right to erasure has been addressed once the legally established period has elapsed, it is appropriate to formally uphold the claim presented regarding the right to erasure.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO UPHOLD for formal reasons, the claim made by Mr. A.A.A. against INGENIERÍA Y CONSTRUCCIONES DEL SUR, S.A. However, it is not appropriate to issue a new certification by the respondent, as the response was issued late, and no additional actions are required from the responsible party.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to INGENIERÍA Y CONSTRUCCIONES DEL SUR, S.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for the Protection of Data within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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